IN THE UTAH COURT OF APPEALS
PO Box 140230
Salt Lake City, UT 84114-0230

Plaintiff/Appellee:
STATE OF UTAH

vs.

Case No. 20180024-CA

Defendant/Appellant:
ERNEST CLAYTON HARPER

Appeal from a conviction for stalking, a second-degree felony, in the Third Judicial District, Salt Lake County, the Honorable Katherine Bernards-Goodman presiding

BRIEF OF APPELLEE

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TABLE OF CONTENTS

INTRODUCTION 1

STATEMENT OF THE ISSUES 2

STATEMENT OF THE CASE 3

The First Case 4

The First Appeal of the First Case 4

Revocation of Probation in the First Case 5

The Second Appeal of the First Case 5

The Second Case 5

Sentencing on the Second Case 9

Appeal of the Second Case 10

SUMMARY OF ARGUMENT 10

ARGUMENT 13

I. Any jurisdictional defect in either appeal affects only that appeal; this Court has jurisdiction in the first case and should affirm because Harper has abandoned his appellate challenge. 13

II. This Court does not have appellate jurisdiction over Harper's challenges to his guilty plea in the second case because the appeal involves new challenges not raised in his motion to withdraw. 16

III. If this Court has jurisdiction over Harper's second case, it should affirm because Harper has failed to carry his burden of proving that his plea was unknowing or involuntary. 22

A. The record does not demonstrate that the prosecutor promised to recommend probation; in any event, the prosecutor's prison recommendation would not entitle Harper to withdrawal of his plea. 25

C. Harper has not proven that he was misled into genuinely and legitimately thinking the prosecutor had promised to recommend probation. 41

D. At most, Harper would be entitled to a remand for further fact findings. 47

IV. If this Court has jurisdiction over Harper's ineffective-assistance claim, it should reject the claim as inadequately briefed. 49

CONCLUSION 55

TABLE OF AUTHORITIES

Federal Cases

Bousley v. United States, 523 U.S. 614 (1998) 42, 43, 46

Brady v. United States, 397 U.S. 742 (1970) 41

Hill v. Lockhart, 474 U.S. 52 (1985) 53

Lee v. United States, 137 S. Ct. 1958 (2017) 47, 53

McMann v. Richardson, 397 U.S. 759 (1970) 43, 46, 51

Napue v. People of State of Illinois, 360 U.S. 264 (1959) 50, 51

Padilla v. Kentucky, 559 U.S. 356 (2010) 49

Parker v. North Carolina, 397 U.S. 790 (1970) 43

Premo v. Moore, 562 U.S. 115 (2011) 50

Puckett v. United States, 556 U.S. 129 (2009) 28, 35, 36, 40, 41

Santobello v. New York, 404 U.S. 257 (1971) 34, 36

Strickland v. Washington, 466 U.S. 668 (1984) 33, 49, 50, 53

United States v. David, 58 F.3d 113 (4th Cir. 1995) 39

United States v. Delacruz, 144 F.3d 492 (7th Cir. 1998) 38

United States v. Gregory, 245 F.3d 160 (2d Cir. 2001) 39

United States v. Hallahan, 756 F.3d 962 (7th Cir. 2014) 39

United States v. Ruiz, 536 U.S. 622 (2002) 42, 43

Weatherford v. Bursey, 429 U.S. 545 (1977) 28

State Cases

Arriaga v. State, 2018 UT App 160, 436 P.3d 222, cert. granted, 437 P.3d 1247 (Utah 2019) 27

Brady v. Park, 2019 UT 16, — P.3d — 28

Estrada v. Mendoza, 2012 UT App 82, 275 P.3d 1024 .....22, 49

Fernandez v. Cook, 870 P.2d 870 (Utah 1993) 51, 53
In re A.R.E.G., 543 N.E.2d 589 (Ill. Ct. App. 1989) 39
NPEC LLC v. Miller, 2018 UT App 85, 427 P.3d 357 14
Pulham v. Kirsling, 2019 UT 18, 443 P.3d 1217 15
Rucker v. Dalton, 598 P.2d 1336 (Utah 1979) 48
Salt Lake City v. Josephson, 2019 UT 6, 435 P.3d 255 21
State v. Alexander, 2012 UT 27, 279 P.3d 371 31
State v. Allgier, 2017 UT 84, 416 P.3d 546 .....17, 20, 21, 22
State v. Archuleta, 2019 UT App 136, — P.3d — 27, 31
State v. Badikyan, 2018 UT App 168, 436 P.3d 256 .....11, 17, 21, 22, 49
State v. Bunker, 2019 UT App 118, — P.3d — 3
State v. Clopten, 2015 UT 82, 362 P.3d 1216 26
State v. Collins, 2015 UT App 214, 359 P.3d 664 31
State v. Copeland, 765 P.2d 1266 (Utah 1988) 42, 45, 48
State v. Corwin, 93 P.3d 745, 2004 WL 1609124 (Kan. Ct. App. 2004) 38
State v. Earl, 2015 UT 12, 345 P.3d 1153 15
State v. Finlayson, 2014 UT App 28, 362 P.3d 926 32
State v. Forsyth, 560 P.2d 337 (Utah 1977) 41
State v. Garfield, 552 P.2d 129 (Utah 1976) 44, 48
State v. Hechtle, 2004 UT App 96, 89 P.3d 185 31
State v. Magness, 2017 UT App 130, 402 P.3d 105 .....3, 42, 43, 46
State v. Pascall, 358 N.E.2d 1368 (Ohio Ct. App. 1972) 38, 39
State v. Patience, 944 P.2d 381 (Utah Ct. App. 1997) 29, 39
State v. Powell, 2015 UT App 250, 361 P.3d 143 31
State v. Rettig, 2017 UT 83, 416 P.3d 520 .....16, 17, 22

State v. Rhinehart, 2007 UT 61, 167 P.3d 1046 23

State v. Roberts, 2015 UT 24, 345 P.3d 1226 51

State v. Ruiz, 2012 UT 29, 282 P.3d 998 31

State v. Saenz, 2016 UT App 95, 373 P.3d 220 36

State v. Samul, 2018 UT App 177, 436 P.3d 298 .....28, 37, 52

State v. Scott, 2017 UT App 103, 400 P.3d 1172 .....14, 15

State v. Smit, 2004 UT App 222, 95 P.3d 1203 36

State v. Terrazas, 2014 UT App 229, 336 P.3d 594 28

State v. Topanotes, 2003 UT 30, 76 P.3d 1159 31

State v. Tyler, 84 P.3d 567 (Idaho Ct. App. 2003) 38, 39

State v. Vallejo, 2019 UT 38, — P.3d — 51

State v. Wareham, 2006 UT App 327, 143 P.3d 302 32

State v. Zuniga, 2002 WI App 233, 652 N.W.2d 423 39

Wilburn v. Interstate Elec., 748 P.2d 582 (Utah Ct. App. 1988) 29

State Statutes

Utah Code Ann. §76-3-402 (West 2015) 1, 6, 25, 26

Utah Code Ann. §77-13-6 (West 2017) 14, 17, 23, 35, 36

State Rules

Utah R. App. P. 23B 55

Utah R. Civ. P. 65C 17

Utah R. Crim. P. 11 20

Other Authorities

21 Am.Jur.2d Criminal Law §§655–56 (Westlaw 2014) 35

23 Williston on Contracts §63:26 (4th ed.) 40

2003 Utah Laws 1321 36

INTRODUCTION

Ernest Clayton Harper pleaded guilty to stalking. The plea agreement provided, "The State agrees to a two-step 76-3-402 reduction if I comply 100% with all terms and conditions of AP&P probation." Harper moved to withdraw his guilty plea after he found out that AP&P was going to recommend prison. Harper argued that his plea was unknowing and involuntary because he was pressured into pleading due to his mental condition, and his attorney at the time told him he was guaranteed probation.

Harper has changed tack on appeal, arguing that the prosecutor promised to recommend probation but breached that agreement. Alternatively, he argues that the language of the plea agreement misled him into thinking the prosecutor was going to recommend probation. He also argues that if the prosecutor did not intend to recommend probation, Harper's counsel was ineffective for not making the prosecutor correct his contrary "false statement" in the plea agreement.

This case also involves a consolidated appeal with another stalking case of Harper's. But Harper has withdrawn his claim of error in the other case. Harper suggests that severance of the two appellate cases is necessary because of a supposed jurisdictional defect in that other case. While the Court may sever the cases, severance is not necessary because any jurisdictional problem would be limited to the specific case in which it arises.

While there is no jurisdictional problem in the appeal Harper has abandoned, this Court does not have jurisdiction in the appeal that Harper has not abandoned. Harper filed a timely motion to withdraw his guilty plea, but he did not challenge his plea on the bases he now raises. This Court has held that the Plea Withdrawal Statute bars appellate consideration—even for plain error or ineffective assistance—of challenges not specifically raised below.

If this Court disagrees that Harper's challenges are unpreserved, it should affirm the district court's denial of his motion to withdraw his plea. Harper has not established that his plea was unknowing or involuntary. Because the language of the plea agreement is ambiguous, Harper had to present extrinsic evidence of the parties' intent. He presented no evidence to establish that the prosecutor agreed to recommend probation or that Harper genuinely and legitimately thought that the prosecutor had done so.

STATEMENT OF THE ISSUES

1. Is severance of the consolidated appeal necessary?

Standard of Review. Because this issue arises for the first time on appeal, addresses the authority of the appellate court, and does not ask this Court to review any (in)action by the district court, no standard of review applies.

2. Does this Court have jurisdiction to address challenges to Harper's guilty plea that he did not raise in his timely motion to withdraw that plea?

Standard of Review. Same as for Issue 1.

3. If this Court has jurisdiction, did the district court act within its discretion when it concluded that Harper had not shown that his plea was unknowing or involuntary?

Standard of Review. A court's denial of a motion to withdraw a plea is reviewed for abuse of discretion. *State v. Magness*, 2017 UT App 130, ¶16, 402 P.3d 105.

4. If this Court has jurisdiction, has Harper proved that counsel was ineffective for not requiring the prosecutor to clarify during the plea colloquy that the plea bargain did not contain a promise to recommend probation?

Standard of Review. No standard of review applies to a claim of ineffective assistance brought for the first time on appeal. *State v. Bunker*, 2019 UT App 118, ¶8, — P.3d —-.

STATEMENT OF THE CASE

This consolidated appeal involves two cases against Ernest Clayton Harper in which the district court imposed prison sentences during a global sentencing.

The First Case

In case 131401036 (the first case), Harper pleaded guilty to one count of third-degree felony stalking for violating a civil stalking injunction obtained by his now ex-wife. R036:4, 38, 50.[1] The probable cause statement accompanying the information stated that the same day his ex-wife received the injunction, Harper texted her and sent a topless picture of her to her family members and employer and posted it online. R036:2–3. After pleading guilty, Harper was placed on probation. R036:81.

The First Appeal of the First Case

Harper appealed after the court sentenced him to probation, with the appellate case designated as 20140030-CA. R036:92, 111–12. But on appeal, Harper did not challenge his sentence; rather, he challenged his plea despite not having moved to withdraw his plea before his sentence was announced. R036:396–97. This Court summarily dismissed the appeal for lack of jurisdiction. R036:396–97.

[1] The State cites the record using the last three digits of the trial court case number in italics, with a colon preceding the page number in the case record. Thus, "R036:4" refers to page 4 in the record of the first case (case 131401036).

Revocation of Probation in the First Case

Twenty-one months after sentencing, Harper admitted that he violated the terms of his probation by contacting his ex-wife, but the court continued probation. R036:207, 336. About a year and a half later, Harper's probation officers arrested him for suspected custodial interference when he did not return his son to Harper's ex-wife. R036:480. As he was transported to jail, Harper kicked one officer several times and head-butted another. R036:480. Harper later admitted he violated his probation by committing attempted assault by a prisoner. R036:714, 720–21. The court revoked Harper's probation and imposed the original 0 to 5-year prison sentence. R036:604–05.

The Second Appeal of the First Case

Harper appealed from the order revoking his probation and imposing the original prison sentence, with the appellate case designated as 20180250-CA. R036:615, 631. This is one of the appeals at issue here.

The Second Case

In case 161911938 (the second case),[2] the probable cause affidavit averred that Harper sent hundreds of texts to an ex-girlfriend over a three-week period and

[2] Although the global sentencing involved resolution of more than two cases against Harper, the State uses the "first" and "second" designations for ease of reference.

threatened to send nude pictures of her to her employer to get her fired; he also went to his ex-girlfriend's apartment complex after management had told him not to return, and he would not leave when they told him to. R938:2.[3]

Harper was charged with criminal trespass, a class B misdemeanor, and stalking, originally filed as a third-degree felony and later amended to a second. R938:1–2, 78. With the assistance of counsel (plea counsel), Harper pleaded guilty to stalking as a second-degree felony. R938:160, 166. In exchange, the trespassing charge was dropped and the State agreed to recommend release to Adult Probation & Parole supervision "pending sentencing." R938:160. The plea statement also said, "The State agrees to a two-step 76-3-402 reduction if I comply 100% with all terms and conditions of AP&P probation." R938:160. But Harper volunteered at the hearing that he "realize[d] that the penalty of this guilty plea could … put [him] in prison." R938:597. And during the subsequent colloquy Harper confirmed that he understood when the court said it could sentence him to prison even though "[s]omething less may be recommended." R938:602. The court accepted the plea, ordered Harper's release, and directed AP&P to complete a presentence

[3] This occurred while Harper was still on probation in the first case, about a year after the court had continued probation and about eight months before Harper assaulted the probation officers. R036:431, 480. The court entered an order to show cause in the first case based on the allegations in the second case, but with the parties' agreement the court held the matter pending resolution of the second case. R036:437, 452, 458.

investigation (PSI) report. R938:604–05.[4]

Represented by new counsel (withdrawal counsel), Harper later filed another motion to withdraw the plea in which he argued that his plea was involuntary because of his emotional instability at the time, and it was unknowing because his plea counsel's advice had misled him. R938:306–07.

Harper provided a declaration stating that his plea counsel "told me I'll get probation" and that Harper "did not know that by pleading guilty, I could be sent to prison." R938:309. He added, "I did not know that AP&P would recommend prison." R938:309.

At the hearing on the motion to withdraw the guilty plea, Harper's withdrawal counsel acknowledged that Harper understood the court could impose imprisonment, but he argued that Harper "expected that he would get probation." R938:632. He pointed to Harper's emotional instability and the statement of his plea counsel "that he would get probation if he pled as charged." R938:631–33. Harper's withdrawal counsel also pointed to the language of the plea agreement, which said the State would agree to a two-step reduction "if I comply 100% with all terms and conditions of AP&P probation." R938:160, 631–32, 635–36, 639. His withdrawal counsel argued that, at least to a non-lawyer, that language "clearly would imply" that "the State is agreeing that he will receive probation." R938:631–

[4] The motion did not state a basis for withdrawal. R938:184.

32. His withdrawal counsel stated that Harper would not have had "a problem with the plea" if AP&P and the prosecutor recommended probation. R938:636. But he claimed that given the language of the plea agreement and his plea counsel's "statement that he would get probation," Harper "was misled" into pleading guilty. R938:636, 639. His withdrawal counsel made no proffer of what Harper actually understood the language of the plea agreement to mean.

The prosecutor proffered that "we never talked about probation being agreed upon," and he emphasized that it would have been in the plea statement if it was part of the agreement. R938:635.

The district court found that Harper understood that prison was a possibility when he pleaded guilty and that there was no basis for Harper thinking "he had a guarantee of probation." R938:639. The court noted that it had told Harper he could be sentenced to prison, and the court found it "very difficult to think" that Harper's plea counsel "would have ever told him that there wasn't a possibility of prison and that what the sentence was would be up to the judge." R938:638. The court denied the motion, explaining that "find[ing] out he has a prison recommendation" was not a valid basis to withdraw a plea. R938:638.

Sentencing on the Second Case

After the district court denied Harper's motion to withdraw his plea, but before sentencing, Harper—who was still represented by counsel at the time—sent the court a dozen letters or pro se motions addressing his plea. R938:339–51, 357, 370, 381–85, 433, 439–51, 455, 458–60, 488–98, 506, 510, 514–16. In them, Harper acknowledged that the court would decide what sentence to impose, but he argued that he had "sign[ed] a deal for probation with the Harper was represented by new counsel at sentencing (sentencing counsel), and she argued for probation. As part of that argument, she pointed to the language of the plea agreement about a 402 reduction. R938:736. Stating that she had "no idea how an argument could be made that this didn't agree to probation," Harper's sentencing counsel asserted that such language "would never be part of a potential prison sentence recommendation," or at least would be a "very confusing" way to word an agreement that allowed for a prison recommendation. R938:736. Still, his sentencing counsel did not argue that the prosecutor was bound to recommend probation or that the prosecutor breached any such agreement, nor did she ask the court to reconsider its denial of Harper's motion to withdraw his plea.

The prosecutor argued for imprisonment. R938:751–52. The court imposed a

1 to 15-year sentence. R938:549–50.[5]

Appeal of the Second Case

Harper timely appealed from the final order in his second case, with the appellate case designated as 20180024-CA. R938:571, 575.[6] Upon Harper's motion, this Court consolidated this appeal with his second appeal of the first case (20180250-CA), with the consolidated appellate case designated as 20180024-CA. R036:639.

SUMMARY OF ARGUMENT

As an initial matter, Harper argues that this Court must sever the appeals in the first and second cases, presumably because he believes there is a jurisdictional defect in the appeal of the first case. While the Court may sever the cases, doing so is not necessary. There is no jurisdictional defect in the first case, and Harper has abandoned his challenge in that case anyway. The Court need only affirm.

In the second case, Harper argues for the first time on appeal that the plea agreement included a promise that the prosecutor would recommend probation and

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[5] This sentence was imposed at the same hearing in which the court revoked Harper's probation on the first case. R938:549–50.

[6] Harper had earlier filed a notice of appeal from a non-final order in the second case, with the appellate case designated as 20170662-CA. R938:355, 590. This Court dismissed the appeal for lack of jurisdiction. R938:590–91. That earlier appeal is not at issue here.

the prosecutor was required to fulfill that promise. Harper claims that the breach rendered the plea unknowing and involuntary.

Alternatively, Harper argues that he was misled into understanding that the prosecutor would recommend probation, and that if the prosecutor never intended to do so, Harper pleaded guilty without understanding the actual value of the bargain he made. Finally, Harper argues that if there was no promise to recommend probation, his plea counsel was ineffective for not objecting to the prosecutor's contrary, "false" statement in the plea agreement and demanding during the plea colloquy that the prosecutor correct or clarify it.

This Court does not have jurisdiction over any of the challenges in Harper's second case. As this Court held in *State v. Badikyan*, a timely motion to withdraw a guilty plea is insufficient to confer appellate jurisdiction over challenges that are not raised in the motion. All of Harper's appellate challenges are new. His trial motion focused on his own mental condition and his misunderstanding that he was guaranteed probation, based on the language of the plea agreement and his plea counsel's assurances. Harper never alerted the district court to his argument that he thought he was entitled to a probation recommendation from the State. And he never presented any evidence about what he believed the prosecutor had promised to do. Finally, Harper essentially concedes that he did not raise his claim that his

plea counsel should have demanded that the prosecutor clarify or correct the statements in the plea agreement.

But if this Court concludes that Harper preserved his challenges, it should reject them because Harper did not present evidence to prove that his plea was unknowing or involuntary. No evidence establishes that the prosecutor promised to recommend probation, and the prosecutor's proffer directly refutes any assertion of such a promise. Harper had the burden to prove his claim, and he failed to do so.

Furthermore, even if there were a promise to recommend probation, at most that would entitle Harper to resentencing before a different judge where the prosecutor makes the recommendation. But even so, the State would be excused from performing that obligation because Harper's subsequent criminal activity amounted to a breach of an implied promise to not change the circumstances under which the parties reached their agreement.

The evidence is also insufficient to show that Harper was genuinely and legitimately misled by the language in the plea agreement. On the record Harper created below, Harper cannot show an abuse of discretion in the district court's denial of his motion to withdraw his plea.

Finally, if this Court has jurisdiction over Harper's ineffective-assistance claim, it should dismiss the claim as inadequately briefed.

ARGUMENT

I. Any jurisdictional defect in either appeal affects only that appeal; this Court has jurisdiction in the first case and should affirm because Harper has abandoned his appellate challenge.

Harper suggests that this Court should vacate its order consolidating the appeals in the first and second cases. Br.Aplt.5.[7] Harper seems to imply that doing so is necessary "in order for this Court to separately rule" on the merits of his appeal in the second case. Br.Aplt.5. The logic of Harper's argument seems to be that (1) this Court dismissed Harper's first appeal in the first case for lack of jurisdiction; (2) that jurisdictional ruling "is controlling" in the second appeal of the first case; and (3) any jurisdictional defect in the first case necessarily infects the second case as well. Br.Aplt.5.

This Court may vacate its consolidation order, but doing so is not necessary to reach the merits of either the first or second appeal. There is no jurisdictional defect in the first case. Harper's second appeal of the first case—which he now abandons—is jurisdictionally distinct from his first appeal of the first case. But even if there were a jurisdictional defect in his first case, it could not affect this Court's authority to rule on the issues in the second case.

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[7] Although Harper's brief says he "moves to vacate the prior order of consolidation," Harper has not filed a motion to vacate. Br.Aplt.5. But that would not prevent the Court from doing so on its own motion.

In the first appeal of the first case, this Court dismissed for lack of jurisdiction under the Plea Withdrawal Statute, Utah Code §77-13-6, because Harper challenged the validity of his guilty plea on appeal but he had not filed a timely motion to withdraw his guilty plea in the first case. R036:396–97.

Harper's second appeal in the first case does not challenge the validity of his guilty plea. Rather, it ostensibly challenges the probation revocation in the first case. Br.Aplt.5. This Court would have jurisdiction to address any post-plea orders that Harper challenges in his first case, including the revocation of his probation. *See NPEC LLC v. Miller*, 2018 UT App 85, ¶¶4–10, 427 P.3d 357 (per curiam) (concluding that law of the case barred consideration of issues in second appeal that did not "challenge actions occurring after the dismissal of his first appeal"); *State v. Scott*, 2017 UT App 103, ¶¶8–9, 400 P.3d 1172 (concluding that court had jurisdiction to address sentence but not guilty plea).

But Harper has now withdrawn his challenge to the district court's probation revocation in the first case. Br.Aplt.5. He concedes that the probation revocation "cannot be legitimately deemed to be legally unreasonable or excessive under governing law." Br.Aplt.5. Where Harper has abandoned his challenge to the probation revocation, the proper ruling in the first case is not dismissal for lack of jurisdiction, but affirmance.

Even so, any possible jurisdictional problem in the first case does not require severing the two cases on appeal. Any preclusive effect that this Court's prior dismissal had can at most affect the first case. Consolidation on appeal does not erase the distinct identities of multiple cases. *See Pulham v. Kirsling*, 2019 UT 18, ¶¶22, 45, 443 P.3d 1217 (analyzing limits on appellate jurisdiction over one appeal separate from substantive issues in second consolidated appeal); *State v. Earl*, 2015 UT 12, ¶13, 345 P.3d 1153 (affirming "the decisions in both of the consolidated cases" and remanding for further consideration). Just as the jurisdictional limits of the Plea Withdrawal Statute are applied to specific issues raised within one case and not necessarily the entire case, *see Scott*, 2017 UT App 103, ¶¶8–9, any jurisdictional defect in the first case based on the Plea Withdrawal Statute cannot reach the second case, even if the two are consolidated for purposes of appeal.

Although this Court lacks jurisdiction over the appeal in the second case, as argued below in Point II, the jurisdictional defect in Harper's appeal does not stem from this Court's earlier order in the first case. Because this Court has jurisdiction over the second appeal from the first case, and because Harper has withdrawn his challenge to the district court's probation revocation, this Court should simply affirm the district court's order in the first case.

II. This Court does not have appellate jurisdiction over Harper's challenges to his guilty plea in the second case because the appeal involves new challenges not raised in his motion to withdraw.

Harper presents two arguments in his appeal on the second case. First, he argues that the prosecutor either agreed to recommend probation and breached that promise; or he misrepresented that he would recommend probation, leading Harper to miscalculate the value of the State's concessions and thus rendering his plea unknowing or involuntary. Br.Aplt.3, 6–15, 17–24. Second, Harper argues that—if the prosecutor had not promised to recommend probation—Harper's plea counsel was ineffective for not demanding at the plea colloquy that the prosecutor clarify or correct the "false" statement in the plea agreement that he would recommend probation. Br.Aplt.3, 15–16, 23–29.

Neither challenge is preserved, and under the Plea Withdrawal Statute, this Court lacks jurisdiction over challenges to a guilty plea that are not raised before sentence is announced. This Court has applied that rule even when a defendant timely moves to withdraw his guilty plea but, like Harper, challenges the plea on grounds that differ from those raised on appeal.

In *State v. Rettig*, 2017 UT 83, 416 P.3d 520, the supreme court held that the Plea Withdrawal Statute imposes "both a rule of preservation and a jurisdictional bar on appellate consideration of matters not properly preserved." *Id.* ¶27 (second emphasis added). If the matter is not properly preserved, appellate courts lack

jurisdiction to consider it, even through plain-error review or an ineffective-assistance challenge. *Id.* ¶¶27, 44, 47–51, 61. And in *State v. Allgier*, 2017 UT 84, 416 P.3d 546, the supreme court explained that the Plea Withdrawal Statute's rule of preservation requires a challenge to be specifically raised. *Id.* ¶25. It "require[s] that an issue be 'presented to the trial court in such a way that the trial court has an opportunity to rule on that issue.'" *Id.* The test is not just whether a motion was timely, but "whether an issue was specifically raised in the district court in a timely fashion and whether evidence or relevant legal authority was introduced to address the issue." *Id.* "The Plea Withdrawal Statute requires a defendant to take each of these steps to withdraw a plea of guilty or no contest." *Id.*

Although *Rettig* and *Allgier* involved appellate review where there was no valid motion to withdraw the pleas, this Court held in *State v. Badikyan*, 2018 UT App 168, 436 P.3d 256, *cert. granted*, 437 P.3d 1247, that under *Rettig* and *Allgier* a timely motion is not sufficient to grant appellate jurisdiction over challenges not raised in that motion. *Badikyan*, 2018 UT App 168, ¶¶18–22; *see also* Utah Code Ann. §77-13-6(2)(c) (West 2017) ("Any challenge to a guilty plea not made within the time period specified in Subsection (2)(b) shall be pursued under Title 78B, Chapter 9, Postconviction Remedies Act, and Rule 65C, Utah Rules of Civil Procedure." (emphasis added)).

Although Harper timely moved to withdraw his plea, he did not challenge his plea on the bases he now raises. In his motion, Harper argued that he did not "appreciate[e] the full consequences of his guilty plea" for two reasons: he was emotionally unstable because he faced the prospect of losing custody of his son, and his attorney advised him that he would get probation if he pleaded guilty. R938:307, 309. Harper thus claimed that he "did not know" that he "could be sent to prison." R938:309. He cited cases in his motion discussing mental condition and its effect on voluntariness. R938:306–07.

Harper never argued in his motion or during oral argument on that motion that the plea agreement actually contained an enforceable agreement that the prosecutor would recommend probation. R938:306–07, 631–40. During oral argument, Harper's withdrawal counsel did argue that the language of the plea agreement suggested that a non-attorney would have understood the plea agreement to mean that "the State is agreeing that he will receive probation." R938:631–32 (emphasis added). But he used that language to reinforce his argument that Harper's plea counsel misled him, particularly in light of Harper's mental state at the time. R938:631–33, 639.

And Harper's withdrawal counsel phrased the argument in terms of Harper thinking he was guaranteed probation—not in terms of a promised recommendation that the sentencing court had discretion to disregard. See

R938:631 (acknowledging that "we understand" that the court had discretion in sentencing but arguing that "the problem is … that he was informed by his attorney … that he would get probation if he pled" (emphasis added)); R938:632 ("[T]he State is agreeing that he will receive probation." (emphasis added)); R938:632 ("And he was relying on his attorney's representation that he will be given probation." (emphasis added)); R938:632 "[Y]ou wouldn't put down a two-step reduction if he complies with probation if there wasn't certainly an inference it was expected that he would get probation." (emphasis added)); R938:632 ("[W]hat was in his mind at the time … was the representation by this attorney that in exchange for pleading … you will get probation … ." (emphasis added)); R938:639 ("[H]e was entering a plea based on the statement that he would get probation." (emphasis added)).

The district court naturally understood these repeated references as an argument that Harper thought he was guaranteed probation. It rejected Harper's argument, stating that it did not understand why Harper "would think he had a guarantee of probation" when the court told him otherwise during the plea colloquy and Harper reiterated at the time that he understood. R938:639. The court also stated that disliking a sentencing recommendation was not a valid basis for withdrawal of a plea. R938:638.

A guarantee of probation is not the same thing as a promise that the prosecutor would recommend probation. Rule 11 of the Utah Rules of Criminal Procedure provides an avenue for parties to commit the court to a particular sentence. After reaching a tentative agreement, the parties may disclose that agreement to the court before entry of a plea. Utah R. Crim. P. 11(i)(2). "The judge may then indicate to the prosecuting attorney and defense counsel whether the proposed disposition will be approved." *Id.* And if the judge later changes her mind, she must give the defendant a chance to withdraw his plea. Utah R. Crim. P. 11(i)(3). That process is wholly distinct from a typical sentencing recommendation, which the court is not bound to accept. Utah R. Crim. P. 11(h)(2).

If Harper was really arguing that the prosecutor had promised to recommend probation, or that Harper was misled into thinking he had, Harper did not present that argument "in such a way that the trial court ha[d] an opportunity to rule on that issue.'" *Allgier*, 2017 UT 84, ¶25. Harper never asked for an evidentiary hearing to create a record of what the prosecutor promised. He never proffered his own testimony or his plea counsel's testimony that they understood the prosecutor had promised to recommend probation. He never requested a ruling interpreting the language of the plea agreement or making findings about the reasonable expectations of the parties about what the State promised to do. He never cited any

cases dealing with the interpretation of plea agreements, breach of plea agreements, or whether a defendant understood the value of the promises made to him. And on appeal, Harper never tries to challenge the district court's finding on the claim he presented below—that Harper was guaranteed probation or at least thought that he was.

Because no "evidence or relevant legal authority was introduced to address the issue" Harper raises on appeal, he did not preserve his challenge. *Allgier*, 2017 UT 84, ¶25; *see also Salt Lake City v. Josephson*, 2019 UT 6, ¶12, 435 P.3d 255 ("The party must put forth enough evidence that 'the issue [is] sufficiently raised to a level of consciousness before the trial court.'" (alteration in original)).

Harper's failure to preserve is even clearer on his second challenge—that his plea counsel was ineffective for not insisting during the plea colloquy that the prosecutor correct the statement in the plea agreement. Harper never raised this objection below. Indeed, Harper effectively concedes that he did not preserve this claim, arguing it through the lens of ineffective assistance. Br.Aplt.1. 3, 24–29. But under *Badikyan*, Harper's concession means this Court has no jurisdiction to consider the new appellate challenge even under an ineffective-assistance rubric. *Badikyan*, 2018 UT App 168, ¶¶18–22.

Harper does make passing references in his appellate brief to this claim as if it were preserved. Br.Aplt.15, 23. But he cites no place in the record where this

issue was preserved and presents it in his issue statement as an unpreserved claim. Br.Aplt.1–2. Harper's motion to withdraw his guilty plea and his arguments on that motion never addressed allegedly false statements by the prosecutor or argued that the prosecutor was required to correct any false statements.

Because Harper did not preserve the challenges to his plea that he now raises on appeal, this Court lacks jurisdiction. *Allgier*, 2017 UT 84, ¶25; *Rettig*, 2017 UT 83, ¶¶26–27; *Badikyan*, 2018 UT App 168, ¶¶18–22. This Court should therefore dismiss the appeal in the second case for lack of jurisdiction.

III. If this Court has jurisdiction over Harper's second case, it should affirm because Harper has failed to carry his burden of proving that his plea was unknowing or involuntary.

If the Court agrees that Harper's appellate challenges are not preserved, then under *Badikyan* it cannot address them even for plain error or ineffective assistance. If, however, the Court believes that Harper's challenge below was sufficient to give the district court an opportunity to rule on the issues he now asks this Court to address, then this Court may address them on their merits. But even if this Court gets to the merits, Harper's arguments for withdrawing the plea lack record support.[8]

[8] The supreme court granted a writ of certiorari to review *Badikyan*. But "'[t]he fact that certiorari was granted … does not deprive [the opinion] of precedential value.'" *Estrada v. Mendoza*, 2012 UT App 82, ¶7 n.4, 275 P.3d 1024 (omission and second alteration in original). In the event that the supreme court were to

For the same reason, this Court need not stay this case or certify it to the supreme court pending that court's disposition of *Badikyan*. Either Harper sufficiently presented his claims and this Court may reach them, or he did not and he has forfeited them by not arguing plain error or ineffective assistance. (As for Harper's single ineffective-assistance claim, it is inadequately briefed, as demonstrated in Point IV below, and thus does not present the kind of significant issue that justifies certification.)

A defendant may withdraw a guilty plea only on "a showing that it was not knowingly and voluntarily made." Utah Code Ann. §77-13-6(2)(a). Harper argues that his plea was unknowing and involuntary for two alternative reasons. First, he argues that the plea agreement obligated the prosecutor to recommend probation, and the prosecutor's prison recommendation breached the agreement and rendered Harper's plea unknowing or involuntary. Br.Aplt.11, 16. Second, Harper argues that at the very least, the language in the plea agreement misled him into thinking

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overturn *Badikyan* before this Court disposes of Harper's appeal, that may allow this Court to reach unpreserved challenges to Harper's guilty plea through plain error or ineffective assistance. But apart from his claim that his plea counsel should have insisted on the prosecutor correcting the plea statement, Harper has not presented any justification for reaching his unpreserved challenges. Harper would not be entitled to review of his other challenges even for plain error or ineffective assistance. *See, e.g.*, *State v. Rhinehart*, 2007 UT 61, ¶21, 167 P.3d 1046 (refusing to consider unpreserved issue when appellant did not brief any justification for reaching it).

the prosecutor had promised to recommend probation, thus causing Harper to misunderstand the value of the plea bargain. Br.Aplt. 3, 9–13, 16–24.

The record does not support either of Harper's alternative claims. It was Harper's burden to prove that his plea was unknowing or involuntary. Any deficiency in the record must be held against Harper. First, Harper did not establish that the prosecutor agreed to recommend probation. But even if it did, Harper would not be entitled to withdraw his plea—at most he would be entitled to resentencing, though even that remedy is unavailable because Harper's continuing criminal conduct excused the prosecutor from any obligation to recommend probation. Second, Harper did not establish that he was misled into thinking the prosecutor had promised to recommend probation. He presented no evidence of any misrepresentation and no evidence that Harper actually thought the prosecutor had promised to recommend probation.

But if this Court disagrees and believes that there is some evidence to support Harper's position, the most it can do is remand for the district court to make credibility and other findings to resolve any conflict in the evidence.

A. The record does not demonstrate that the prosecutor promised to recommend probation; in any event, the prosecutor's prison recommendation would not entitle Harper to withdrawal of his plea.

Harper repeatedly refers in his brief to an "agreement for probation." Br.Aplt.10, 11, 12, 13, 14, 15. The State interprets this as an argument that the prosecutor agreed to recommend probation. Harper argues that "the State was obligated to keep its word," and that its failure to do so entitles Harper to withdraw his plea. Br.Aplt.11, 16.

But Harper assumes that the plea agreement contains a promise that the prosecutor would recommend probation. He has never proved that key fact. In any event, he would not be entitled to withdraw his plea even if the prosecutor had promised to recommend probation.

1. Harper did not prove that the plea agreement contained a promise to recommend probation.

Harper relies on the language of the plea agreement to argue that the prosecutor agreed to recommend probation. But the language is ambiguous, so Harper must rely on extrinsic evidence to interpret the agreement. Because Harper presented no extrinsic evidence to the district court that could have established that key point, this Court must affirm.

The plea statement says, "The State agrees to a two-step 76-3-402 reduction if I comply 100% with all terms and conditions of AP&P probation." R938:160.

Harper points out that the language does not say that "'if he gets probation'" the State will recommend a two-step reduction. Br.Aplt.10. But Harper glosses over something else the language does not say: The plea statement does not say that the State will recommend probation. It does not even use Harper's more amorphous phrase, "agree[] to probation." Br.Aplt.10, 11, 12, 13, 14, 15.[9]

Because there is no express agreement to recommend probation, Harper's argument must depend on an implied promise to recommend probation. But it is at least equally valid to read the promise to be no more than that the State would agree to a two-step reduction if the court had decided to grant probation.[10]

If Harper means an agreement to seek to commit the court, he has not challenged the district court's finding that Harper had no guarantee of probation and that Harper understood he had no guarantee. Any such claim thus fails at the outset. *See, e.g.*, *State v. Clopten*, 2015 UT 82, ¶45, 362 P.3d 1216 (refusing to

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[9] Even if the plea statement had used the phrase "agree to probation," that could mean five different things: agree to have the court commit to a sentence of probation under rule 11(i); agree to recommend probation; agree to not oppose Harper's request for probation; agree to not oppose a probation recommendation from AP&P; or agree to recommend probation if AP&P recommended probation.

[10] The reference to a two-step reduction does not by itself establish that the prosecutor was committed to probation as opposed to prison. The statute allows for a two-step reduction even for defendants sentenced to prison. Utah Code Ann. §76-3-402(1), (3) (West 2015). The plea statement thus makes one thing clear: If the court decided to sentence Harper to prison, the prosecutor was not obligated to agree to a two-step reduction.

address argument where defendant asked the appellate court "to review a decision the trial court did not make" but "failed to challenge the decision the trial court did make"). Such a claim would also fail because Harper has not explained why his after-the-fact declaration should be enough to overcome the "'strong presumption of verity'" given to his "'[s]olemn declaration in open court'" that he understood the court was free to sentence him to prison. *See Arriaga v. State*, 2018 UT App 160, ¶15, 436 P.3d 222, *cert. granted*, 437 P.3d 1247 (Utah 2019); *accord State v. Archuleta*, 2019 UT App 136, ¶20, — P.3d —-. If Harper means an agreement to not oppose Harper's request for probation, the analysis in this case would functionally be no different than if dealing with an agreement to affirmatively recommend probation.

Harper tries to buttress his interpretation of the language by arguing that it "makes no sense" for the prosecutor to agree to release Harper pending sentencing if the prosecutor's "true intentions" were to argue for a prison sentence. Br.Aplt.10. But there is nothing inconsistent with the prosecutor agreeing to release pending sentencing but not binding himself to recommend probation. In fact, that course is imminently reasonable. Harper's release gave Harper an opportunity to prove that he was a good candidate for probation—a test that Harper ultimately failed when he assaulted his probation officers while on release. Thus,

the provision recommending release pending sentencing does nothing to remove the ambiguity in the plea agreement. Both interpretations are reasonable.

"Plea agreements are generally interpreted using principles of contract law."[11] *State v. Samul*, 2018 UT App 177, ¶14, 436 P.3d 298. "[A] contractual term or provision is ambiguous if 'it is capable of more than one reasonable interpretation because of uncertain meanings of terms, missing terms, or other facial deficiencies.'" *Brady v. Park*, 2019 UT 16, ¶54, — P.3d —-. "[W]here a contractual term or provision is ambiguous as to what the parties intended, the question becomes a question of fact to be determined by the fact-finder" "by considering extrinsic evidence of the parties' intent." *Id.* ¶53. Thus, "[t]he underlying purpose in construing a contract is to ascertain the intentions of the parties and to identify what the parties reasonably understood to be the terms of the agreement." *State v. Terrazas*, 2014 UT App 229, ¶27, 336 P.3d 594 (citation and internal quotation marks omitted).

This Court has noted that ambiguities in plea agreements are construed against the government. *Samul*, 2018 UT App 177, ¶13 n.2. That rule represents a modification of the basic interpretive rule of contracts that ambiguities are to be

[11] There is "no constitutional right to plea bargain." *Weatherford v. Bursey*, 429 U.S. 545, 561 (1977). But if a prosecutor chooses to offer one, and a defendant accepts it by pleading guilty, the parties "essentially" have a contract. *Puckett v. United States*, 556 U.S. 129, 137 (2009).

construed against the drafter. *See State v. Patience*, 944 P.2d 381, 387 (Utah Ct. App. 1997) (noting that there are some "limits to the contract analogy," including "'holding the government to a greater degree of responsibility than the defendant … for imprecisions or ambiguities in plea agreements'"). But construing a contract against the drafter—or, in the case of a plea agreement, against the State—is a tie-breaker rule that is to be applied only after looking to extrinsic evidence to ascertain the parties' intent. *See Brady*, 2019 UT 16, ¶56 ("In the rare case where the extrinsic evidence 'does not reveal the intent of the parties,' a district court should then, and only then, 'resolve the ambiguity against the drafter.'" (footnote omitted)); *Wilburn v. Interstate Elec.*, 748 P.2d 582, 585–86 (Utah Ct. App. 1988) ("[T]he doctrine of construing ambiguities in a contract against the drafter functions as a kind of tie-breaker, used as a last resort by the fact-finder after the receipt and consideration of all pertinent extrinsic evidence has left unresolved what the parties actually intended."). Otherwise, courts risk overriding the actual intent of the parties.

Harper does not point to any relevant extrinsic evidence. Indeed, he presented none below. He argues that this Court should simply accept his "unopposed affidavit." Br.Aplt.24. But Harper's declaration says nothing about whether the prosecutor promised to recommend probation. Instead, he said only that he "thought that I would be placed on probation," that his plea counsel "told

me I'll get probation," that Harper "did not know that by pleading guilty, I could be sent to prison," and that Harper "did not know that AP&P would recommend prison." R938:309.

Nothing in that proffer says that either Harper or his plea counsel understood the language of the plea statement to contain a promise that the prosecutor would recommend probation. In fact, it suggests the opposite. Harper proffers that he understood that he would actually get probation. But a promise to merely recommend probation necessarily includes the possibility that Harper would not get it—precisely the opposite of what Harper declared he understood the agreement to be.

In fact, the prosecutor proffered at the hearing on Harper's motion to withdraw his plea that "we never talked about probation being agreed upon." R938:635. The prosecutor added that if there had been an agreement for probation, "[i]t would have been in the plea form that we agree that he gets probation and a 402 [reduction] upon successful completion." R938:635 (emphasis added). So the only proffer of relevant extrinsic evidence in the record defeats Harper's claim.

Perhaps recognizing that no extrinsic evidence supports his interpretation of the plea agreement, Harper faults the State for having "neglected to have [Harper's plea counsel] testify" about the plea negotiations. Br.Aplt.24. But Harper bore the burden of proving that his plea was unknowing or involuntary, so any record

deficiency must be held against Harper, not the State. *State v. Ruiz*, 2012 UT 29, ¶¶36–37, 282 P.3d 998 ("[O]n a presentence motion to withdraw, the burden of proof is on the defendant, who must show that his or her plea was not knowingly and voluntarily made."); *see also State v. Archuleta*, 2019 UT App 136, ¶23, — P.3d —- (concluding that defendant failed to meet his burden when he presented no "'objective evidence'"—only "'self-serving statements'" that were contradicted by his statements during plea colloquy); *State v. Powell*, 2015 UT App 250, ¶¶6–8, 361 P.3d 143 (concluding defendant failed to meet his burden when evidence he presented was "thin, at best" and was contradicted by other evidence in the record); *State v. Collins*, 2015 UT App 214, ¶9, 359 P.3d 664 (concluding that defendant fell "far short of carrying his burden" when he pointed to evidence that he was confused about the details of his plea during his plea withdrawal hearing, but no evidence that he was confused at the time he entered his plea).

When the party that has the burden of proof in the district court fails to put on evidence to support his claim, this Court must affirm the denial of the claim. *See State v. Topanotes*, 2003 UT 30, ¶11, 76 P.3d 1159 (stating that remand for further factual development is inappropriate where party with burden of proof has failed to put on evidence to meet that burden); *State v. Hechtle*, 2004 UT App 96, ¶17 n.4, 89 P.3d 185 (same). *See also State v. Alexander*, 2012 UT 27, ¶¶68–69, 279 P.3d 371 (Lee, J., concurring in part and dissenting in part) (stating that lack of

evidence supporting motion to withdraw plea should be resolved against defendant, who bears burden of proof). *But see Alexander*, 2012 UT 27, ¶55 (majority opinion) (concluding that "record nonetheless demonstrates that Mr. Alexander's plea was not knowingly and voluntarily made").

Harper does not rely on the many letters and pro se motions he submitted to the court to establish the meaning of the plea agreement. But even if he had, it would be insufficient. After the court denied Harper's motion to withdraw his plea, Harper told the court in several letters and pro se filings that the prosecutor made "a deal for probation." *See, e.g.*, R938:339. But these documents do not constitute record evidence. "When a defendant is represented by counsel, he generally has no authority to file pro se motions, and the court should not consider them." *State v. Wareham*, 2006 UT App 327, ¶33, 143 P.3d 302 (internal quotation marks omitted); *accord State v. Finlayson*, 2014 UT App 282, ¶21 n.10, 362 P.3d 926.

In any event, "a deal for probation" is not necessarily an agreement to recommend probation. If anything, it is more consistent with Harper's declaration —that he understood that he had a deal that would guarantee probation. *See* Utah R. Crim. P. 11(i). But the district court found that Harper had no guarantee of probation and that he understood as much. R938:639.

Further, Harper was represented by new counsel during sentencing. His sentencing counsel was aware of these letters and was aware that Harper wanted

the district court to reconsider its denial of his motion to withdraw his plea. R938:685–87, 734, 753. Yet his sentencing counsel chose not to file a motion to reconsider or to present any additional evidence to the court. And although she argued that the language of the plea agreement suggested an agreement for probation or was at least "very confusing," Harper's sentencing counsel never argued that the prosecutor's prison recommendation breached the plea agreement and entitled Harper to some remedy. R938:736. Harper has not argued that his sentencing counsel was ineffective. Given the "strong presumption" of reasonable representation, *Strickland v. Washington*, 466 U.S. 668, 689 (1984), this Court should assume that Harper's sentencing counsel could find no factual basis to support a claim that the prosecutor actually promised to recommend probation. The best she could do on this point was appeal to the confusing language to argue for leniency.

In short, the language of the plea agreement is ambiguous. It does not state that the prosecutor will recommend probation and can reasonably be read as containing no such implicit promise. Because it is ambiguous, Harper had to present extrinsic evidence to the district court to establish that the plea agreement contained a promise to recommend probation. He did not. Because he failed to prove that the plea agreement contained a promise to recommend probation, he has failed to prove that the prosecutor breached any promise by recommending prison.

2. Even if the prosecutor promised to recommend probation, Harper would not be entitled to withdraw his plea.

But even if Harper had made the necessary factual showing below, he is not entitled to withdraw his plea on this basis for two reasons. First, for any breach of a plea agreement, Harper is entitled only to specific performance—resentencing before a different judge where the prosecutor makes the promised recommendation. Second, Harper is not even entitled to specific performance because his subsequent criminal activity excused the prosecutor from any obligation to recommend probation—Harper's subsequent criminal activity hindered the government and breached an implied promise not to change the circumstances that formed a basis of the agreement.

a. Withdrawal of a guilty plea is not available as a remedy for any breach of a plea agreement.

The State's breach of any agreement entitles Harper only to specific performance, not withdrawal of his plea. When a defendant pleads guilty in exchange for a sentencing recommendation, the prosecutor's promise "must be fulfilled." *Santobello v. New York*, 404 U.S. 257, 262 (1971). Agreeing to recommend one thing but instead recommending another amounts to a breach of the plea agreement. *See id.* at 258–59.

If there is a breach and the defendant objects, the United States Supreme Court has held that state trial courts have the discretion to choose between two remedies based upon the circumstances of the case: (1) plea withdrawal; or (2) specific performance—that is, resentencing in front of a different judge at which the prosecutor makes the agreed-upon recommendation. *Id.* at 263.

Though the Supreme Court held that the Constitution affords defendants a remedy when a prosecutor breaches the sentencing promise, the Court did not specify that they have a right to a particular remedy. In practice, resentencing is preferred by far. 21 Am.Jur.2d Criminal Law §§655–56 (Westlaw 2014) (citing cases). And the Supreme Court has never prohibited the states from regulating those remedies. In Utah, the legislature has limited the availability of plea withdrawal to situations where the plea was unknowing and involuntary. Utah Code Ann. §77-13-6(2)(a); *Alexander*, 2012 UT 27, ¶23.

Breach of a plea agreement does not render a plea unknowing or involuntary. *Puckett v. United States*, 556 U.S. 129, 137–38 (2009). As the Supreme Court explained, "it is entirely clear that a breach does not cause the guilty plea, when entered, to have been unknowing or involuntary. It is precisely because the plea was knowing and voluntary (and hence valid) that the Government is obligated to uphold its side of the bargain." *Id.* And because breach

cannot render a plea unknowing or involuntary, breach cannot serve a basis for withdrawal of the plea under Utah law. *See* Utah Code Ann. §77-13-6(2)(a).

This Court has held that trial courts have discretion to choose the remedy for a breach of a plea agreement. *State v. Smit*, 2004 UT App 222, ¶¶9–17, 95 P.3d 1203 (applying *Santobello*). But it reached that conclusion in a case that was governed by a prior version of the Plea Withdrawal Statute, which allowed for withdrawal upon a showing of good cause. *See* Utah Code of Criminal Procedure Amendments, ch. 290, §1, 2003 Utah Laws 1321 (amending Utah Code §77-13-6, effective May 5, 2003, to change the required showing for withdrawing a plea from good cause to unknowing and involuntary); *Smit*, 2004 UT App 222, ¶4 (indicating that Smit's sentencing took place in 2002). It also reached that conclusion before the United States Supreme Court clarified that a breach of a plea agreement does not render a plea unknowing or involuntary. *See Puckett*, 556 U.S. at 137–38 & n.1 (disavowing, in 2009, prior cases that suggested a breach would render a plea unknowing or involuntary). And more recently, this Court has held that when a defendant alleges breach of a plea agreement but fails to comply with the requirements of the Plea Withdrawal Statute, "the only alternative remedy available" is specific performance, not withdrawal. *State v. Saenz*, 2016 UT App 95, ¶7, 373 P.3d 220 (addressing scenario where breach was alleged in untimely

motion to withdraw plea).[12]

If the prosecutor promised to recommend probation, then at most Harper is entitled to resentencing before a different judge where the State recommends probation. Harper never asked for this remedy from the district court, and he does not ask for this remedy on appeal.

b. The State was excused from any obligation to recommend probation because of Harper's subsequent criminal activity.

Even so, Harper is not entitled to resentencing because the State is excused from any obligation to recommend probation due to Harper's assault of his probation officers between the plea hearing and sentencing. Harper claims that even "If"[13] he committed a new offense after the plea agreement, the prosecutor was obligated to honor his promise or "undo or modify the plea." Br.Aplt.16. He argues that any response to a new offense had to be pursued in a separate proceeding because the plea agreement said nothing about allowing the prosecutor

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[12] After holding in *Saenz* that the Plea Withdrawal Statute limits the trial court's discretion to choose between remedies for a breach, the Court in a subsequent case repeated the general principle that trial courts have discretion to choose the remedy. *See State v. Samul*, 2018 UT App 177, ¶17, 436 P.3d 298. But that reference was dicta and should be disavowed to the extent it conflicts with *Saenz*, the Plea Withdrawal Statute, and United States Supreme Court precedent.

[13] Harper refuses to acknowledge that he did commit a new offense after pleading guilty. Br.Aplt.10, 16. Yet Harper admitted to the district court that he violated his probation in the first case by committing attempted assault by a prisoner. R036:480, 714, 720–21.

to "change its mind if situation XYZ arises." Br.Aplt.16.

Harper cites no authority for his argument that any subsequent criminal activity has no bearing on the State's obligations in the plea agreement. In fact, substantial authority supports the opposite position: Subsequent criminal activity excuses the State from any obligation to recommend probation.

"[W]hen a defendant, as a result of 'plea bargaining,' enters a plea of guilty in exchange for the prosecutor's promise to recommend probation, there is an implied promise by the defendant that the circumstances under which the bargain was made will remain substantially the same." *State v. Pascall*, 358 N.E.2d 1368, 1369 (Ohio Ct. App. 1972). "The commission of a crime subsequent to entering a plea agreement and before sentencing is a change in circumstances amounting to a breach of that implied promise and is sufficient to excuse the state from fulfilling its promised recommendation." *State v. Tyler*, 84 P.3d 567, 570 (Idaho Ct. App. 2003). "To require the prosecutor to fulfill his promise, or to permit the defendant to withdraw his plea, would, in effect, reward the defendant for his unlawful conduct." *Pascall*, 358 N.E.2d at 1369. *See also United States v. Delacruz*, 144 F.3d 492, 494–95 (7th Cir. 1998) (excusing prosecutor from sentencing recommendation because defendant breached plea agreement by fleeing jurisdiction and engaging in further criminal conduct); *State v. Corwin*, 93 P.3d 745, 2004 WL 1609124 at *1–2 (Kan. Ct. App. 2004) (per curiam) (unpublished)

(excusing prosecutor from sentencing recommendation because defendant committed additional felonies after pleading guilty); *In re A.R.E.G.*, 543 N.E.2d 589, 589–91 (Ill. Ct. App. 1989) (excusing prosecutor from obligation to recommend lighter disposition because juvenile engaged in additional delinquent behavior between adjudication and disposition). *Cf. Patience*, 944 P.2d at 387 (stating that defendant's breach of plea agreement authorizes state to rescind plea agreement).

It does not matter that the defendant's obligation is implied rather than express. *United States v. Hallahan*, 756 F.3d 962, 973 (7th Cir. 2014); *United States v. David*, 58 F.3d 113, 115 (4th Cir. 1995); *Tyler*, 84 P.3d at 570; *Pascall*, 358 N.E.2d at 1369. And when a defendant breaches a plea agreement, he is not entitled to withdraw from that agreement. *Hallahan*, 756 F.3d at 973; *United States v. Gregory*, 245 F.3d 160, 165–66 (2d Cir. 2001); *Pascall*, 358 N.E.2d at 1369. *But see State v. Zuniga*, 2002 WI App 233, ¶11, 652 N.W.2d 423 (rejecting excuse analysis and concluding that proper remedy under Wisconsin law is vacating plea agreement and guilty plea). "'[A] classic rule of contract law, is that a party should be prevented from benefitting from its own breach.'" *Hallahan*, 756 F.3d at 973 (alteration in original). "Otherwise, a party would have the power to escape an unwanted contractual obligation simply by breaching another provision of the contract under which it arises." *Id.*

Although most courts view this problem through the lens of changed circumstances, hindrance provides another basis for excusing the State from recommending probation. "[E]very contract contains an implied condition that each party will not unjustifiably hinder the other from performing." 23 Williston on Contracts §63:26 (4th ed.). The United States Supreme Court recognized the potential applicability of this doctrine to cases like this. In *Puckett v. United States*, the government agreed to argue for a three-level sentencing reduction based on acceptance of responsibility. *Puckett*, 556 U.S. at 131. But when Puckett committed another crime before sentencing, the government opposed any sentencing reduction. *Id.* at 132. Although the government conceded on appeal that it had breached the plea agreement, the Court noted that an argument that "ongoing criminal conduct hindered performance … might have convinced us had it been pressed." *Id.* at 140 n.2.

When the State recommends probation, it implicitly warrants to the district court that the defendant is an appropriate candidate for probation. When the defendant commits further criminal activity after the State agrees to recommend probation and before sentencing, the defendant has unjustifiably and substantially hindered the State's ability to fulfill its obligation. At the very least, the defendant has breached the agreement by changing the circumstances in a material way, fundamentally altering a key consideration that the State's promise was based on—

the defendant's criminal history and risk assessment. When Harper assaulted his probation officers after pleading guilty in the second case, the State was excused from recommending probation in the second case—to the extent it ever promised to do so.

C. Harper has not proven that he was misled into genuinely and legitimately thinking the prosecutor had promised to recommend probation.

Harper argues that even if the prosecutor had not promised to recommend probation, the language in the plea agreement misled Harper into thinking the prosecutor had, thus causing Harper to misunderstand the value of the plea bargain. Br.Aplt. 3, 9–13, 16–24.

Again, Harper has failed to point to any evidence that could establish his claim that the prosecutor misled Harper into thinking the prosecutor had promised to recommend probation.

To be voluntary, a plea must be entered "without undue influence, coercion, or improper inducement." *State v. Forsyth*, 560 P.2d 337, 338–39 (Utah 1977). Thus, a defendant may establish that a plea was involuntary if it was induced by a "'misrepresentation'" that "at the time of contracting" the prosecutor intended not to perform. *Puckett*, 556 U.S. at 138 n.1.

To be knowing, a plea must be made "with sufficient awareness of the relevant circumstances and likely consequences." *Brady v. United States*, 397 U.S.

742, 748 (1970). The attendant circumstances and likely consequences of which the defendant must be aware include "'the actual value of any commitments made to him by the court, prosecutor, or his own counsel.'" *Id.* at 755.[14]

Thus, a defendant may establish that his plea was unknowing if "he was misinformed as to the true nature of the charge against him" or other attendant circumstances or likely consequences of his plea, *see Bousley v. United States*, 523 U.S. 614, 619 (1998) (emphasis added), and as a result the defendant was "genuinely and legitimately confused," *State v. Copeland*, 765 P.2d 1266, 1274–75 (Utah 1988).[15] "If a prosecutor makes misstatements and the defendant relies upon the misstatements, a substantial question arises as to whether [the d]efendant knowingly and voluntarily entered into a plea." *State v. Magness*, 2017 UT App 130, ¶22, 402 P.3d 105.

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[14] Courts and litigants often use knowing and voluntary interchangeably. *See, e.g.*, *United States v. Ruiz*, 536 U.S. 622, 629 (2002). While there may be some overlap in the concepts, knowingness generally relates to the facts and law of which a defendant must be aware to intelligently plead. *See Bousley v. United States*, 523 U.S. 614, 618 (1998). On the other hand, voluntariness refers to the requirement that the plea not be the product of state coercion or improper inducement. *Forsyth*, 560 P.2d at 338–39.

[15] A showing that the defendant was misled or misinformed may not always be required to show that a plea was unknowing. *See Copeland*, 765 P.2d at 1274–76. But Harper has based his claim that he did not understand the true value of the plea agreement solely on the premise that he was misled. Br.Aplt.6–24.

For example, in *Magness*, this Court held that the defendant was entitled to withdraw his plea where the prosecutor promised to recommend probation as long as the victim did not ask for a prison sentence, and the prosecutor mistakenly said at the time of the plea that the victim did not at that time plan to ask for a prison sentence. *Id.* ¶¶7, 25–28.

But this Court also cautioned that if the defendant "simply miscalculated the likelihood" of a certain outcome without any misstatement by the prosecutor that induced that miscalculation, "a basis for withdrawing the guilty plea would likely not exist." *Id.* ¶29.

with the assistance of counsel decides to plead guilty, it is not enough to show that the defendant miscalculated or misjudged the likelihood of a particular sentence. *See United States v. Ruiz*, 536 U.S. 622, 630–31 (2002); *Bousley*, 523 U.S. at 619; *Parker v. North Carolina*, 397 U.S. 790, 797–98 (1970); *McMann v. Richardson*, 397 U.S. 759, 769–71 (1970); *Brady*, 397 U.S. at 756–57.

"[T]he decision to plead guilty before the evidence is in frequently involves the making of difficult judgments." *McMann*, 397 U.S. at 769. "[T]he Constitution … does not require complete knowledge of the relevant circumstances, but permits a court to accept a guilty plea … despite various forms of misapprehension under which a defendant might labor." *Ruiz*, 536 U.S. at 630. Thus, a defendant cannot show that his plea was unknowing when he "did not correctly assess every relevant

factor entering into his decision," or when "his calculus misapprehended … the likely penalties attached to alternative courses of action." *Brady*, 397 U.S. at 756–57. "[A] mere subjective belief of a defendant as to potential sentence, or hope of leniency, unsupported by any promise from the prosecutor or indication by the court, is insufficient to invalidate a guilty plea as involuntary or unknowing." *State v. Garfield*, 552 P.2d 129, 131 (Utah 1976) (emphasis added).

Harper argues that he was misled by the written plea agreement. Br.Aplt.3, 9–13, 16–24. He does not argue that he was misled by the court or by defense counsel.[16] And he does not point to anything other than the written plea agreement as the source of any misinformation. Rather, he claims that the prosecutor made a "false" promise, promising to recommend probation while his "true intentions" were always to argue for imprisonment. *See* Br.Aplt.3, 9–13. He thus argues that he was "misled" into pleading guilty by the prosecutor's "bait-and-switch," making his plea involuntary. Br.Aplt.11, 13. He also appears to argue that even if the prosecutor did not lie, the statement in the plea agreement was still misleading and caused Harper to miscalculate the value of the bargain he had received, thus making his plea unknowing. Br.Aplt.16–24.

[16] Harper argued below that his counsel misled him. R938:307, 309. But he has abandoned any such claim on appeal.

Harper has pointed to no evidence to support his allegations that the prosecutor intentionally misled him. The allegations are baseless. This Court should reject out of hand any claim that Harper's plea was induced by a promise that the prosecutor had no intention of keeping.

To the extent Harper also argues that the prosecutor misled him—inadvertently or unintentionally—by the wording of the plea agreement, Harper has not proven that Harper was genuinely and legitimately misled by any such misstatement.

Even assuming that the ambiguity in the statement, coupled with the prosecutor's proffer that there was no agreement for probation, were enough to establish that the prosecutor misstated his intent by agreeing to the language in the plea agreement, Harper also had to prove that he was "genuinely and legitimately confused" about the terms of the agreement as a result. *Copeland*, 765 P.2d at 1274–75. Harper proffered nothing below to establish that he actually thought the prosecutor had agreed to recommend probation. As discussed, Harper's declaration stated that he thought he would be placed on probation and that his plea counsel told him as much. But Harper never declared that he believed the prosecutor had promised to recommend probation. During the hearing, his withdrawal counsel never proffered anything to indicate that Harper genuinely and legitimately believed the prosecutor had agreed to recommend probation. And for the reasons

stated in Point III.A.1 above, Harper's letters and pro se motions are insufficient to establish that he genuinely and legitimately believed the prosecutor had promised to recommend probation. If those documents and the facts behind them supported a finding that Harper's plea was unknowing, Harper's sentencing counsel would have asked the court to reconsider its ruling.[17]

Harper has not pointed to any evidence to show that his expectation that he would get probation for pleading guilty was anything other than an ordinary "misapprehension" of the likelihood of a particular outcome. *Ruiz*, 536 U.S. at 630. Harper and his plea counsel "simply miscalculated the likelihood" of probation, without any misrepresentation by the prosecutor. *Magness*, 2017 UT App 130, ¶29. That is not enough to prove that his plea was unknowing or involuntary. *Ruiz*, 536 U.S. at 630–31; *Bousley*, 523 U.S. at 619; *Parker*, 397 U.S. at 797–98; *McMann*, 397 U.S. at 769–71; *Brady*, 397 U.S. at 756–57.

In short, Harper did not create a record below to show that the prosecutor misled him and that Harper genuinely and legitimately, but mistakenly, believed the prosecutor had agreed to recommend probation. Because Harper did not meet his burden below, this Court should affirm.

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[17] As explained above, the letters and motions refer to an agreement or deal for probation. If Harper meant that he thought the parties had agreed to ask the court to commit itself to a probation sentence through rule 11(i), the district court's unchallenged finding that Harper understood he was not guaranteed probation forecloses that argument.

D. At most, Harper would be entitled to a remand for further fact findings.

If this Court believes there is some evidence to support either a claim that the plea agreement contained an enforceable promise to recommend probation, or the prosecutor misled Harper into thinking as much, this Court may at most remand for further fact findings by the district court.[18]

If there is any evidence to support Harper's challenges, it does not cut solely in his favor. The prosecutor proffered that there was no agreement for probation. R938:635. And as shown, there is no existing proffer to support Harper's assertions that there was a promise to recommend probation. Even Harper's repeated references in his letters and pro se motions to an agreement for probation —which could mean several different things—are suspect. That proffer was made after the court denied Harper's motion to withdraw. *Cf. Lee v. United States*, 137 S. Ct. 1958, 1967 (2017) ("Courts should not upset a plea solely because of post hoc assertions from a defendant about how he would have pleaded but for his attorney's deficiencies. Judges should instead look to contemporaneous evidence to substantiate a defendant's expressed preferences.").

[18] If this Court believes that remand is necessary, and if it also agrees with the State that the prosecutor was excused from any promise to recommend probation, then the Court should limit any remand to the question of whether Harper was genuinely and legitimately misled by the language in the plea agreement.

So the best Harper could hope for is a remand to take evidence on whether there was an agreement that the prosecutor would recommend probation or whether Harper genuinely and legitimately thought there was as a result of the language in the plea agreement. That may very well require resolving conflicting evidence, including determining witness credibility. "[I]t is not the function of an appellate court to make findings of fact because it does not have the advantage of seeing and hearing witnesses testify." *Rucker v. Dalton*, 598 P.2d 1336, 1338 (Utah 1979). As noted, when a contract is ambiguous, "the question becomes a question of fact to be determined by the fact-finder." *Brady*, 2019 UT 16, ¶53 (emphasis added).

Because the district court has yet to hear evidence on what the parties agreed to or thought they agreed to, and has yet to make fact findings on the key issues in this case, this Court may not reverse and direct the district court to allow Harper to withdraw his plea; at most the Court may remand for the district court to make the required findings. *See Copeland*, 765 P.2d at 1273–76 (remanding for findings on plea withdrawal motion); *Garfield*, 552 P.2d at 130–31 (same).[19]

[19] The State maintains that the district court did not make findings because Harper never asked it to and never offered the requisite evidence to support the arguments he now makes—thus illustrating the lack of preservation that deprives this Court of jurisdiction. Alternatively, the State contends that the district court did not make findings because Harper did not carry his burden of presenting relevant evidence to allow the court to do so. Only if this Court disagrees with both positions should it remand for further findings and credibility determinations.

IV. If this Court has jurisdiction over Harper's ineffective-assistance claim, it should reject the claim as inadequately briefed.

Harper argues that if the prosecutor never promised to recommend probation, he was required to correct the contrary, "false" statement in the plea agreement and that Harper's plea counsel was ineffective for not demanding at the plea colloquy that the prosecutor do so. Br.Aplt.15, 23–29.[20]

Harper has not adequately briefed his claim. He does not explain how his plea counsel was deficient or how any deficient performance prejudiced him. Nor has he made a record sufficient to establish ineffective assistance.

To prove that his plea counsel was ineffective, Harper must prove both that his plea counsel performed deficiently and that he was prejudiced as a result. *Strickland v. Washington*, 466 U.S. 668, 687–89, 694 (1984). This is a "heavy burden," *id.* at 687–89, and "never an easy task," *Padilla v. Kentucky*, 559 U.S. 356, 371 (2010).

Deficient performance requires proof that Harper's plea counsel's representation "fell below an objective standard of reasonableness." *Strickland*,

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[20] This Court cannot, consistent with *Badikyan*, address the merits of an ineffective-assistance claim raising a challenge not raised in Harper's motion to withdraw his guilty plea. *Supra* Point II. However, the State addresses Harper's ineffective-assistance claim out of an abundance of caution. The Court may reach this claim only if the supreme court were to overrule *Badikyan* while this case is pending. *See Estrada*, 2012 UT App 82, ¶7 n.4 (stating that cert. grant does not deprive case of precedential value).

466 U.S. at 687–88. Counsel is always "strongly presumed to have rendered adequate assistance." *Id.* at 690. To show otherwise, Harper must prove that "no competent attorney" would have proceeded as his plea counsel did. *Premo v. Moore*, 562 U.S. 115, 124 (2011). To show prejudice, Harper must show that there is "a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different." *Strickland*, 466 U.S. at 694.

Harper does not explain how his plea counsel was deficient. Harper argues that the prosecutor was obligated to correct any misstatements in the plea agreement, and Harper cites *Napue v. People of State of Illinois*, 360 U.S. 264 (1959), in support. Br.Aplt.15, 23–29. In *Napue*, the Supreme Court held that the State must correct "false evidence" when it appears. 360 U.S. at 269.

Although Harper spends several pages in his brief explaining why the prosecutor supposedly violated *Napue*, Harper gives scant treatment to the controlling issue on appeal—why his plea counsel was deficient for not raising the issue. Harper concludes that his plea counsel "rendered ineffective and deficient performance when he failed to point out and/or clarify the lack of probation representation in the plea form to the court and the prosecution." Br.Aplt.27–28. But a single sentence asserting that counsel was deficient for not raising the issue is inadequate to carry Harper's burden of proof on appeal. "This is merely rephrasing that which must ultimately be shown to satisfy the … the Strickland test

… .” *Fernandez v. Cook*, 870 P.2d 870, 877 (Utah 1993). That “is clearly insufficient to affirmatively demonstrate” deficient performance. *See id.*; *see also State v. Roberts*, 2015 UT 24 ¶18, 345 P.3d 1226 (stating that an appellant who does not support his argument with authority or analysis will ordinarily fail to meet his burden).

The question on appeal is not whether the prosecutor violated *Napue*, but whether all reasonable attorneys would have recognized and raised a *Napue* claim. *See McMann*, 397 U.S. at 770–71 (deficient performance analysis turns “not on whether a court would retrospectively consider counsel’s advice to be right or wrong, but on whether that advice was within the range of competence demanded of attorneys in criminal cases”); *State v. Vallejo*, 2019 UT 38, ¶¶69–70 & n.13, — P.3d —- (addressing whether counsel’s performance was reasonable without addressing whether objection would have succeeded). Harper has done nothing to meet that standard.

For example, Harper has not explained why all reasonable attorneys would have recognized the statement in the plea agreement as a “false statement.” As explained in Point III.A.1 above, the statement in the plea agreement can reasonably be read as not promising to recommend probation. If a reasonable attorney could interpret the statement that way, then counsel could reasonably decide there was no false statement to correct. “The presence of ambiguity defeats

[Harper's] argument that his counsel was ineffective." *Samul*, 2018 UT App 177, ¶¶15–16 (rejecting claim that counsel was ineffective for not alleging breach of plea agreement, because plea agreement was ambiguous).

But even if every reasonable attorney would have read the statement as promising to recommend probation, Harper has pointed to no record evidence to explain how his plea counsel, or any other reasonable attorney, would have known "at the time of the plea" that it was false—that the prosecutor did not intend to recommend probation. Br.Aplt.15. If the written plea agreement is read the way Harper insists, then the soonest any of Harper's counsel would have become aware that the prosecutor did not intend to recommend probation would have been at the hearing on the motion to withdraw the plea, where the prosecutor stated that there was no agreement on probation. But by that point, the prosecutor had corrected any "false statement" by clarifying that there was no agreement on probation. R938:635. In other words, the prosecutor did exactly what Harper argues his plea counsel should have asked him to do, and at the soonest point that this record establishes that a reasonable attorney would have been alerted to the issue.[21]

[21] To the extent Harper argues that the prosecutor intended to recommend probation, that the language of the plea statement is "false" in that it does not contain a promise to recommend probation, and that his plea counsel should have asked the prosecutor to clarify the language to add a promise to recommend probation, *see* Br.Aplt.28, Harper has not shown that the record established the predicate fact that the prosecutor ever intended to recommend probation.

Harper's prejudice argument is similarly truncated. Although he quotes extensively from *Lee v. United States*, 137 S. Ct. 1958 (2017), to demonstrate how prejudice should be analyzed in a plea context, he baldly asserts that "[h]ad prior counsel appropriately clarified the State's lack of probation recommendation in the plea agreement, … Harper would not have pleaded guilty and would have insisted on going to trial." Br.Aplt.29. Again, this is "merely rephrasing that which must ultimately be shown to satisfy the second prong of the Strickland test." *Fernandez*, 870 P.2d at 877.

Harper's declaration never states that he would have insisted on going to trial if only he knew that the prosecutor was not recommending probation. That is fatal to his claim. "[I]n order to satisfy the 'prejudice' requirement, the defendant must show that there is a reasonable probability that, but for counsel's errors, he would not have pleaded guilty and would have insisted on going to trial." *Hill v. Lockhart*, 474 U.S. 52, 59 (1985).

His argument as to why he would have insisted on going to trial cannot substitute for a proffer that he in fact would have so insisted. *See id.* at 60 (rejecting petitioner's claim because he did not allege in his petition for habeas relief that he would have rejected plea and insisted on trial had counsel given him correct advice). But in any event, Harper's argument (elsewhere in his brief) as to why it would have made sense for him to insist on going to trial is contradicted by

the record. Harper suggests that getting probation was "a determinative factor" in deciding to plead guilty. Br.Aplt.12. He thus analogizes to *Lee*, where the Supreme Court held that a defendant was able to show that going to trial would have been a rational choice because avoiding deportation "was the determinative factor for him" and trial gave him a slightly better chance of that. 137 S. Ct. at 1967–69. But the question here is whether getting a recommendation for probation was the determinative factor. If actually getting probation was the determinative factor, as Harper suggests, then a promise that the prosecutor would merely recommend probation would not have been enough to induce Harper to plead guilty because the court could easily reject the recommendation.

Further, the record does not clearly establish that getting a promise to recommend probation—or even actually getting probation—was the determinative factor for Harper. Although his declaration states that he did not know that he could be sent to prison by pleading guilty, he also identified other considerations: his plea counsel allegedly told him he would "never see [his] son again unless [he] plead[ed]," and during the plea colloquy Harper said he wanted to plead because he wanted to be released from custody immediately, which was part of the plea agreement. R938:160, 309, 595. And although Harper's withdrawal counsel referred to Harper pleading "as charged," R938:631–32, a criminal trespass charge was dismissed as part of the plea agreement, R938:160. Harper cannot show on

this record that getting a probation recommendation from the State was the determinative factor and that he would have insisted on going to trial if his plea counsel had clarified that the prosecutor was not promising to recommend probation. *See Hill*, 474 U.S. at 60 (rejecting petitioner's challenge to plea when he "alleged no special circumstances that might support the conclusion that he placed particular emphasis on [the subject matter of his counsel's bad advice] in deciding whether or not to plead guilty").

Because this Court lacks jurisdiction over Harper's ineffective-assistance claim, because Harper has inadequately briefed his claim, and because he has not created a record to support his claim, this Court should dismiss the claim—even if it remands for factual development on Harper's other claims. Harper had the chance to create a record below. He had the chance to file a motion for remand under rule 23B, Utah Rules of Appellate Procedure. He should not get two bites at the apple.

CONCLUSION

This Court should affirm the first case because Harper has withdrawn his claim of error on appeal. The Court should dismiss the second case for lack of jurisdiction because Harper raises new challenges to his guilty plea on appeal. But

if this Court concludes that it has jurisdiction, it should affirm because Harper failed to prove that his plea was unknowing or involuntary.

Respectfully submitted on August 9, 2019.

s/ William M. Hains
Assistant Solicitor General
Counsel for Appellee

CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the requirements of 24(g) and 21(g) of the Utah Rules of Appellate Procedure (URAP), including:

> Word Limits: My brief has 13,316 words, which is less than the 14,000 word limit. This brief does not contain any non-public information (URAP 21).

I understand that my brief may be rejected if I fail to comply with these rules.

s/ William M. Hains
Assistant Solicitor General
Counsel for Appellee

CERTIFICATE OF SERVICE

I certify that on August 9, 2019, the Brief of Appellee was served upon appellant's counsel of record by [ ] mail email [ ] hand-delivery at: Ronald Fujino, Law Office of Ronald Fujino, 195 East Gentile Street #11, Layton, Utah 84041, counsel356@msn.com.

I further certify that an electronic copy of the brief in searchable portable document format (pdf): was filed with the Court and served on appellant by email, and the appropriate number of hard copies have been or will be mailed or hand-delivered upon the Court and counsel within 7 days. [ ] was filed with the Court on a CD or by email and served on appellant. [ ] will be filed with the Court on a CD or by email and served on appellant within 14 days.

s/ Lee Nakamura